

SENATE BILL No. 208

DIGEST OF INTRODUCED BILL

Citations Affected: IC 5-10-8; IC 5-10.5-4-2; IC 22-14-2-14.

Synopsis: Firefighter cancer insurance. Requires a group health insurance program for firefighters to provide coverage for the screening of certain forms of cancer. Requires a local unit public employer to provide cancer insurance for active firefighters, retired firefighters, and firefighters who are receiving disability benefits. Allows the board of trustees of the Indiana public retirement system to enter into agreements with one or more insurance companies to provide group cancer insurance for active firefighters, retired firefighters, and firefighters who are receiving disability benefits. Requires the department of homeland security to develop a firefighter cancer awareness and prevention program to provide relevant information to fire department personnel and volunteers concerning best practices for reducing the risk of cancer.

Effective: July 1, 2026.

Crider

January 8, 2026, read first time and referred to Committee on Pensions and Labor.



Second Regular Session of the 124th General Assembly (2026)

PRINTING CODE. Amendments: Whenever an existing statute (or a section of the Indiana Constitution) is being amended, the text of the existing provision will appear in this style type, additions will appear in **this style type**, and deletions will appear in ~~this style type~~.

Additions: Whenever a new statutory provision is being enacted (or a new constitutional provision adopted), the text of the new provision will appear in **this style type**. Also, the word **NEW** will appear in that style type in the introductory clause of each SECTION that adds a new provision to the Indiana Code or the Indiana Constitution.

Conflict reconciliation: Text in a statute in *this style type* or ~~this style type~~ reconciles conflicts between statutes enacted by the 2025 Regular Session of the General Assembly.

SENATE BILL No. 208

A BILL FOR AN ACT to amend the Indiana Code concerning insurance.

Be it enacted by the General Assembly of the State of Indiana:

- 1 SECTION 1. IC 5-10-8-2.3 IS ADDED TO THE INDIANA CODE
- 2 AS A **NEW** SECTION TO READ AS FOLLOWS [EFFECTIVE JULY
- 3 1, 2026]: **Sec. 2.3. (a) This section applies to a policy that is issued,**
- 4 **delivered, amended, or renewed after June 30, 2026.**
- 5 **(b) A group health insurance program established under section**
- 6 **2.2 of this chapter for firefighters must provide coverage for the**
- 7 **screening of:**
- 8 **(1) colon cancer;**
- 9 **(2) lung cancer;**
- 10 **(3) bladder cancer;**
- 11 **(4) oral cancer;**
- 12 **(5) thyroid cancer;**
- 13 **(6) skin cancer;**
- 14 **(7) blood cancer;**
- 15 **(8) breast cancer;**
- 16 **(9) cervical cancer;**
- 17 **(10) testicular cancer;**



(11) prostate cancer; and

(12) any other form of cancer that is generally recognized as having a higher risk of occurrence in a person who performs firefighting services.

(c) Except as provided in subsection (d), the coverage required by this section may not be subject to any copayment, deductible, coinsurance, or other cost sharing requirement.

(d) If a group health insurance program established under section 2.2 of this chapter for firefighters is offered as a qualifying high deductible health plan for a health savings account, the group health insurance program shall establish cost sharing for the coverage under this section at the minimum level necessary to preserve the insured's ability to claim tax exempt contributions and withdrawal from the insured's health savings account under 26 U.S.C. 223.

SECTION 2. IC 5-10-8-2.4 IS ADDED TO THE INDIANA CODE AS A NEW SECTION TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2026]: Sec. 2.4. (a) As used in this section, "firefighter" means a full-time firefighter.

(b) A local unit public employer shall provide cancer insurance for:

(1) active firefighters;

(2) retired firefighters; and

(3) firefighters who are receiving disability benefits under IC 36-8-7 or IC 36-8-8.

(c) A local unit public employer shall provide cancer insurance under subsection (b) through one (1) of the following methods:

(1) By purchasing policies of group insurance.

(2) By establishing self-insurance programs.

(3) If the board of trustees of INPRS provides cancer insurance under IC 5-10.5-4-2(a)(18), by electing to provide the coverage through a policy adopted by the board of trustees of INPRS.

(d) A local unit public employer may pay a part of the cost of cancer insurance for:

(1) active firefighters;

(2) retired firefighters; and

(3) firefighters who are receiving disability benefits under IC 36-8-7 or IC 36-8-8.

(e) A local unit public employer may not cancel an insurance contract under this section during the policy term of the contract.

SECTION 3. IC 5-10.5-4-2, AS AMENDED BY P.L.111-2015,



SECTION 5, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE
JULY 1, 2026]: Sec. 2. (a) The board may do any of the following:

(1) Establish and amend rules and regulations:

(A) for the administration and regulation of the fund and the
board's affairs; and

(B) to effectuate the powers and purposes of the board;
without adopting a rule under IC 4-22-2.

(2) Make contracts and sue and be sued as the board of trustees of
the Indiana public retirement system.

(3) Delegate duties to its employees.

(4) Enter into agreements with one (1) or more insurance
companies to provide life, hospitalization, surgical, medical,
dental, vision, long term care, or supplemental Medicare
insurance, utilizing individual or group insurance policies for
retired members of the fund, and, upon authorization of the
respective member, deduct premium payments for such policies
from the members' retirement benefits and remit the payments to
the insurance companies.

(5) Enter into agreements with one (1) or more insurance
companies to provide annuities for retired members of the fund,
and, upon a member's authorization, transfer the amount credited
to the member in the annuity savings account to the insurance
companies.

(6) For the 1977 police officers' and firefighters' pension and
disability fund, deduct from benefits paid and remit to the
appropriate entities amounts authorized by IC 36-8-8-17.2.

(7) Whenever the fund's membership is sufficiently large for
actuarial valuation, establish an employer's contribution rate for
all employers, including employers with special benefit provisions
for certain employees.

(8) Amortize prior service liability over a period of thirty (30)
years or less.

(9) Recover payments made under false or fraudulent
representation.

(10) Give bond for an employee for the fund's protection.

(11) Receive the state's share of the cost of the pension
contribution from the federal government for a member on leave
of absence in order to work in a federally supported educational
project.

(12) Summon and examine witnesses when adjusting claims.

(13) When adjusting disability claims, require medical
examinations by doctors approved or appointed by the board. Not



more than two (2) examinations may be conducted in one (1) year.

(14) Conduct investigations to help determine the merit of a claim.

(15) Meet an emergency that may arise in the administration of the board's trust.

(16) Determine other matters regarding the board's trust that are not specified.

(17) Exercise all powers necessary, convenient, or appropriate to carry out and effectuate its public and corporate purposes and to conduct its business.

(18) Enter into agreements with one (1) or more insurance companies to provide group cancer insurance for:

(A) active firefighters;

(B) retired firefighters; and

(C) firefighters who are receiving disability benefits under IC 36-8-7 or IC 36-8-8.

(b) This subsection does not apply to investments of the board. A contract under subsection (a)(2) may be for a term of not more than five (5) years, with an ability to renew thereafter.

(c) An agreement under subsection (a)(4) may be for a duration of three (3) years.

SECTION 4. IC 22-14-2-14 IS ADDED TO THE INDIANA CODE AS A NEW SECTION TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2026]: **Sec. 14. (a) The department shall develop a firefighter cancer awareness and prevention program to provide relevant information to fire department personnel and volunteers concerning best practices for reducing the risk of cancer.**

(b) The department shall consult with:

(1) members of the medical community; and

(2) relevant industry experts;

in developing the firefighter cancer awareness and prevention program under subsection (a).

